

The Maharashtra Right to Information (Repeal) Act, 2005

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State of Maharashtra - Act

The Maharashtra Right to Information (Repeal) Act, 2005

MAHARASHTRA

India

The Maharashtra Right to Information (Repeal) Act, 2005

Act 1 of 2006

Published on 9 January 2006

Commenced on 9 January 2006

[This is the version of this document from 9 January 2006.]

[Note: The original publication document is not available and this content could not be verified.]

The Maharashtra Right to Information (Repeal) Act, 2005

Maharashtra Act

No. 1 of 2006

(First-published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 9th January 2006).

An Act to provide for repeal of the Maharashtra Right to Information Act, 2002 and for certain matters incidental thereto.

Whereas the Right to Information Act, 2005 has been enacted by the Parliament and, therefore, it was considered expedient to repeal the Maharashtra Right to Information Act, 2002, and to provide for certain matters incidental thereto;

And Whereas both Houses of the State Legislature were not in session:

And Whereas the Governor of Maharashtra was satisfied that circumstances existed which rendered it necessary for him to take immediate action to repeal the Maharashtra Right to Information Act, 2002, for the purposes aforesaid; and,

therefore, promulgated the Maharashtra Right to Information (Repeal) Ordinance, 2005, on the 5th October 2005;
And Whereas it is expedient to replace the said Ordinance by an Act of the State Legislature; it is hereby enacted in the Fifty-sixth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Maharashtra Right to Information (Repeal) Act, 2005.

(2)

It shall be deemed to have come into force on the 11th October 2005.

2.

Repeal of Maharashtra XXXI of 2003 and saving.

(1)

The Maharashtra Right to Information Act, 2002, is hereby repealed.

(2)

Notwithstanding such repeal,-

(a)

all applications pending with the Public Information Officers; and

(b)

all appeals pending with the appellate authorities or the Lokayukta or Upa-Lokayuktas, as the case may be, on the date of commencement of this Act shall be continued and disposed of in accordance with the provisions of the Maharashtra Right to Information Act, 2002, as if this Act had not been enacted.

3.

Repeal of Maharashtra Ordinance VII of 2005 and saving.

(1)

The Maharashtra Right to Information (Repeal) Ordinance, 2005, is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance, shall be deemed to have been done or taken, as the case may be under this Act.

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